

Briefing Pack (19 Aug 25)

Zitherixon – Forest Felling and Quarry Expansion



Contents

1) Policy Conflict Checklists – Zitherixon Ball Clay Quarry Expansion	3
A) Teignbridge Local Plan – likely conflicts	3
B) Devon Minerals Plan – Policy M6 (Bovey Basin) – likely conflicts	4
C) National Planning Policy Framework – likely conflicts	4
D) Biodiversity Net Gain – 2024 legal requirements likely to fail here	4
E) South Hams SAC – Greater Horseshoe Bat guidance	5
2) Biodiversity Net Gain (110 percent): Why the Zitherixon proposal is unlikely to comply	6
3) Draft Press Line and Quote – Zitherixon Proposal	9
4) Draft letter to Devon County Council	10
5) Draft letter to Environment Agency	11
6) Draft Parliamentary Questions	12

1) Policy Conflict Checklists – Zitherixon Ball Clay Quarry Expansion

A) Teignbridge Local Plan – likely conflicts

EN2A Landscape Protection and Enhancement: Requires conserving and enhancing local landscape character; removal of mature woodland and creation of an open pit conflicts with this principle.

S2 Quality Development: Development must respond positively to site and wider context; an industrial pit beside homes fails to integrate or enhance local character.

EN8 Biodiversity Protection and Enhancement: Requires net increases in biodiversity; loss of priority woodland without genuine creation/enhancement fails this test.

ENg Important Habitats and Features: Protects priority habitats and requires avoidance/mitigation/compensation; severing bat/dormouse corridors conflicts with this.

EN10 European Wildlife Sites: Requires showing no adverse effect on SAC integrity Habitat Regulations Assessment (HRA); failure to evidence this for South Hams SAC bats is non-compliant.

EN11 Legally Protected and Priority Species: Requires robust surveys and safeguards; any deficit in seasonal bat/dormouse surveys is a procedural and policy failure.

EN12 Woodlands, Trees and Hedgerows: Requires retention/protection and like-for-like replacement; wholesale felling of mature woodland breaches this principle.

S22 Countryside: Aims to preserve attractive, biodiverse landscapes.

EN4 Flood Risk: Requires sequential and exception tests, a compliant FRA and climate-change allowances; 2024 overflow evidence and Teign flood risk trigger strict scrutiny.

B) Devon Minerals Plan – Policy M6 (Bovey Basin) – likely conflicts

Strategic Green Infrastructure (GI) Corridors: Policy M6 expects maintaining and enhancing connectivity at a basin scale. Severing or narrowing the mapped Strategic GI Corridors along the Rivers Teign and Bovey is non-compliant.

Basin-wide approach and partnership: M6 seeks a master-planned, basin-wide approach prepared in partnership with operators, agencies and communities. A narrow, site-only Environmental Statement falls short.

European sites and protected species: Must demonstrate no adverse effect on South Hams SAC and protect bat foraging/flyways. Any severance or insufficient HRA evidence conflicts with M6 and the Habitats Regulations.

Minimise harm to sensitive frontages: Dust, noise and visual effects on Kingsteignton frontages must be minimised and mitigated; proximity to homes makes this difficult.

Restoration and biodiversity net gain: Proposals should contribute positively to biodiversity and green infrastructure at a basin scale. Felling mature woodland and 'restoring later' typically fails BNG arithmetic and GI continuity.

Bovey Basin character guidance: Requires identifying, safeguarding and managing woodland and other green infrastructure that screens sites, filters dust, provides wildlife corridors, and protecting the Teign and Bovey river corridors and floodplain.

C) National Planning Policy Framework – likely conflicts

Paragraph 130 Achieving well-designed places: Decisions should be sympathetic to local character and maintain a strong sense of place; an open pit and heavy plant adjacent to homes contradict these principles.

Flood and drainage policies: Apply the sequential and exception tests; avoid increasing flood risk. Require a robust site-specific FRA with climate-change allowances and adopt a precautionary approach where uncertainty remains.

D) Biodiversity Net Gain – 2024 legal requirements likely to fail here

Pre-commencement duty: A Biodiversity Gain Plan must be approved showing at least 10 percent net gain using the Statutory Metric; habitats must be secured for a minimum of 30 years via legal agreement and management plan.

Temporal penalties: The metric discounts delayed delivery; woodland's long time-to-target means end-loaded restoration will be heavily discounted and unlikely to achieve 10 percent.

Geographical constraints: Off-site units are penalised if distant (spatial risk multipliers) and must align with Local Nature Recovery Strategy priorities. Off-site parcels must be registered and allocated to the project.

Irreplaceable habitats: If present, cannot be justified using BNG units and require bespoke compensation outside the metric.

E) South Hams SAC – Greater Horseshoe Bat guidance

Guidance defines Sustenance Zones and a wider Landscape Connectivity Zone with mapped 'pinch points.' Proposals must avoid severance and show robust seasonal surveys and mitigation to pass HRA.

2) Biodiversity Net Gain (110 percent): Why the Zitherixon proposal is unlikely to comply

Purpose

This short document explains the 2024 Biodiversity Net Gain duty and sets out clear, practical reasons why large-scale felling of mature woodland beside the River Teign is unlikely to meet that legal test.

The legal standard

- Since 12 February 2024, any permission must deliver at least a ten percent net gain in biodiversity value against the predevelopment baseline.
- A Biodiversity Gain Plan must be approved before works start. It must prove how the gain will be delivered using the statutory metric and must include phase by phase delivery for phased schemes.
- Habitats that count toward the gain must be secured for a minimum of thirty years by legal agreement and a Habitat Management and Monitoring Plan. Off-site units must be registered and allocated to the project.

Why this proposal is likely to fail the legal test

- Magnitude of loss. Mature broadleaf woodland carries high distinctiveness and high condition. Removing a large area creates a very large unit deficit that cannot be made up with lower value habitats.
- Time penalties. New woodland takes decades to reach target condition. The statutory metric reduces credited units when delivery is delayed. End loaded restoration will not generate enough units to offset the loss and still deliver plus ten percent.
- Like for like rules. High value woodland cannot be traded down to scrub or grassland. Replacement must be woodland of equivalent or higher value, created early enough that time penalties do not erase the gain.
- Geography penalties. Offsite delivery far from the site or outside the catchment is discounted. To avoid these penalties, large areas of suitable land would need to be

secured locally now. This is a high bar for a minerals operator working in a constrained landscape.

- **Watercourse hurdle.** Working along the River Teign triggers the watercourse module. There must be no net loss of watercourse units within the catchment. This sits on top of the woodland deficit.
- **Irreplaceable habitat risk.** If any ancient or veteran features are present, those areas cannot be justified with Biodiversity Net Gain units and require bespoke compensation outside the metric.
- **Pre commencement lock.** No start on site is lawful until a credible Biodiversity Gain Plan is approved. Vague promises to restore at the end or to find land later will not pass.

What would be required to pass, and why that is implausible

- Early creation of substantial new native woodland of equivalent or higher value, delivered before or in parallel with felling, not decades later.
- A legally secured management and monitoring plan for well beyond thirty years where needed for woodland to reach target condition, with funded milestones and enforcement.
- Large, suitable landholdings within the same authority, national character area and river catchment, registered on the national Biodiversity Gain Sites Register and allocated to this project now.
- Demonstrated no net loss for watercourses within the catchment, plus measurable gains that survive time and distance penalties.
- A phase by phase plan that shows real on the ground habitat delivery for each phase, not just an end state promise.

Conclusion and immediate asks

- On the facts of this site the arithmetic and delivery tests make compliance unlikely. The prudent course is to require full evidence now, not after works begin.
- Require the developer to publish baseline unit calculations for area habitats, hedgerows and watercourses, apply trading rules in full, and prove early like for like delivery.

- Require an Overall Biodiversity Gain Plan now and a Phase Biodiversity Gain Plan before each phase. Identify any off site parcels by national register reference and spatial category.
- Secure a thirty year minimum Habitat Management and Monitoring Plan, acknowledging that woodland may require longer to reach target condition.
- Confirm whether any irreplaceable habitat is present and require bespoke compensation outside the metric where it is.

3) Draft Press Line and Quote – Zitherixon Proposal

Short press line (on the record):

“Residents deserve cast-iron assurance that any quarry plan beside the Teign will be tested against the law in full. I will press Devon County Council, the Environment Agency and Teignbridge to apply Biodiversity Net Gain, Strategic Green Infrastructure, flood and habitats rules rigorously, and I will raise this in Westminster if needed.”

Optional longer quote:

“The Zitherixon proposal would remove mature woodland next to the River Teign and run against core duties on nature and flood resilience. Since 2024, every project must deliver at least 10 percent Biodiversity Net Gain using the statutory metric, with real penalties for delay and distance. Strategic Green Infrastructure Corridors along the Teign and Bovey must be kept connected and enhanced. I am asking the County Council and the Environment Agency to confirm these tests in writing, and I will ensure Ministers are aware that this scheme must be assessed to the full weight of the law.”

4) Draft letter to Devon County Council

19 August 2025
Head of Planning, Development Management
Devon County Council
County Hall
Topsham Road
Exeter EX2 4QD

Subject: Zitherixon ball clay proposal – expectations for ES, Biodiversity Net Gain compliance, GI corridors and hydrology

Dear [Name],

I am writing regarding Sibelco's proposed Zitherixon ball clay expansion near Kingsteignton. I understand that a planning application has not yet been submitted. Given the sensitivity of this location, I am seeking assurance that the Environmental Statement and any future submission will be tested rigorously against statutory duties and adopted policy.

In particular, I ask the Mineral Planning Authority to confirm that:

Biodiversity Net Gain (BNG) – pre-commencement duty: The ES and any submission must include a clear route to at least 10 percent net gain using the statutory biodiversity metric, with an Overall Biodiversity Gain Plan and phase plans where relevant, a minimum 30-year Habitat Management and Monitoring Plan, and full application of trading rules, temporal lag and spatial risk multipliers. Late, end-loaded woodland restoration or reliance on distant off-site units should not be accepted.

Strategic Green Infrastructure (GI) Corridors under Policy M6: The ES must map the Strategic GI Corridors for the Rivers Teign and Bovey and demonstrate no net loss of corridor extent, function or connectivity, with measurable enhancement where feasible.

Hydrology, flood risk and River Teign water quality: The ES must deliver a robust Flood Risk Assessment with climate change allowances and river-catchment hydrology, drawing on recent flooding experience at existing pits, and issues with compliance with previous planning agreements. A precautionary approach should apply where doubt remains.

Habitats Regulations Assessment (HRA): The submission should follow the South Hams SAC guidance on sustenance zones and connectivity, demonstrate avoidance of pinch-point severance for Greater Horseshoe bats, and provide seasonally appropriate survey and mitigation.

Basin-wide approach and community partnership (Policy M6): Given Policy M6's intent, please confirm the expectation of a master-planned, basin-wide approach prepared in partnership with communities and statutory agencies.

I would be grateful for a written response confirming these expectations so residents have confidence that any future application will be assessed to the full weight of the law.

Yours sincerely,

Martin Wrigley MP

Member of Parliament for Newton Abbot

5) Draft letter to Environment Agency

19 August 2025

Area Director

Environment Agency – Devon and Cornwall

Manley House, Kestrel Way

Exeter EX2 7LQ

Subject: Zitherixon ball clay proposal – River Teign hydrology, flood risk and water quality safeguards

Dear [Name],

I am writing regarding Sibelco's intention to bring forward the Zitherixon ball clay expansion near Kingsteignton. Although no application has yet been submitted, the location presents significant hydrological sensitivities along the River Teign.

I would welcome the Environment Agency's assurance that, at scoping and upon submission, you will:

- Require a site-specific Flood Risk Assessment with climate change allowances and full modelling of river-corridor works, dewatering and extreme rainfall scenarios.
- Scrutinise water quality and sediment pathways, including potential turbidity and pollutant mobilisation during wet weather, and require robust surface water and groundwater management strategies.
- Apply a precautionary approach where uncertainty remains, and provide a formal objection if the ES cannot demonstrate no increase in flood risk or harm to the water environment.
- Engage with the HRA process to ensure the South Hams SAC and Greater Horseshoe bat connectivity along the Teign corridor are not adversely affected.

Please could you confirm these expectations in writing.

Yours sincerely,

Martin Wrigley MP

Member of Parliament for [Constituency]

6) Draft Parliamentary Questions – Minerals, Biodiversity Net Gain, Strategic GI Corridors, Hydrology

To the Secretary of State for Levelling Up, Housing and Communities:

- To ask the Secretary of State what guidance his Department has issued to local planning authorities on applying the statutory biodiversity metric's temporal and spatial risk multipliers to phased minerals proposals that would fell mature woodland; and whether he will make a statement on ensuring that late restoration or distant off-site units are not accepted where they fail to deliver the required 10 percent net gain.
- To ask the Secretary of State what steps he is taking to support local planning authorities in enforcing minerals plan policies that require maintenance and enhancement of Strategic Green Infrastructure Corridors, including along the Rivers Teign and Bovey, where proposed extraction risks severing mapped habitat connectivity.

To the Secretary of State for Environment, Food and Rural Affairs:

- To ask the Secretary of State what assessment he has made of Environment Agency guidance and resources for evaluating flood and water quality risks from proposed quarry workings adjacent to main rivers; and whether he will ensure a precautionary approach is taken where recent local flooding has occurred.
- To ask the Secretary of State what steps his Department and Natural England are taking to ensure that Habitats Regulations Assessments for development proposals in the South Hams SAC zones protect bat connectivity and avoid pinch-point severance, with seasonally appropriate surveys and secured mitigation